

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jayvee Rhoda	Team: Squad #08	CCRB Case #: 201504063	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Monday, 05/18/2015 8:40 PM	Location of Incident: Jay Street- MetroTech A/C line subway station; Transit District 30 stationhouse	18 Mo. SOL 11/18/2016	Precinct: 84
Date/Time CV Reported Wed, 05/20/2015 4:25 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 05/20/2015 4:25 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Jaswant Dyal	13885	932588	TB DT30
2. SGT Rasheda Edness	02625	924810	TB DT30

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Leonardo Deoliveira	03164	946681	TB DT30

Officer(s)	Allegation	Investigator Recommendation
A . POM Jaswant Dyal	Discourtesy: At the Jay Street- MetroTech A/C line subway station in Brooklyn, PO Jaswant Dyal spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM Jaswant Dyal	Off. Language: At the Jay Street- MetroTech A/C line subway station in Brooklyn, PO Jaswant Dyal made remarks to § 87(2)(b) based upon race.	B . Unsubstantiated
C . POM Jaswant Dyal	Off. Language: At the Jay Street- MetroTech A/C line subway station in Brooklyn, PO Jaswant Dyal made remarks to § 87(2)(b) based upon the sex of § 87(2)(b)	C . Unsubstantiated
D . SGT Rasheda Edness	Abuse: At the Transit District 30 stationhouse, Sgt. Rasheda Edness did not process § 87(2)(b)'s complaint regarding PO Jaswant Dyal.	D . Unsubstantiated

Case Summary

On May 18, 2015, at approximately 8:40 p.m., § 87(2)(b) swiped her Metro Card at a turnstile at the Jay Street- MetroTech A/C line subway station in Brooklyn. As § 87(2)(b) was placing her wallet inside her backpack, § 87(2)(b)'s Metro Card swipe timed out. § 87(2)(b) waited for a disembarking customer to exit through the emergency gate and she entered the station once someone opened the gate. As § 87(2)(b) was descending the stairwell to the Manhattan-bound train platform, PO Jaswant Dyal from Transit District 30 approached § 87(2)(b) and allegedly said, "Where the fuck you going?" (**Allegation A**). PO Dyal then allegedly called § 87(2)(b) either a "bitch nigger" or a "nigger bitch." (**Allegations B and C**) § 87(2)(b) did not recall the exact order of the phrasing. PO Dyal asked § 87(2)(b) for her ID several times, but § 87(2)(b) refused to provide it and only offered to give PO Dyal her Metro Card. PO Dyal's partner, PO Leonardo Deoliveira from Transit District 30, also spoke with § 87(2)(b) and asked her to cooperate with PO Dyal. § 87(2)(b) eventually provided her ID to PO Dyal, who issued her a summons for § 87(2)(b). After receiving the summons, § 87(2)(b) went to the Transit District 30 stationhouse in Brooklyn to file a complaint against PO Dyal. The desk officer, Sgt. Rasheda Edness, allegedly refused to process § 87(2)(b)'s complaint, telling § 87(2)(b) that there was nothing that she could do (**Allegation D**). § 87(2)(b) left the stationhouse and filed a complaint on her own.

Mediation, Civil, and Criminal Histories

§ 87(2)(b) refused mediation with either PO Dyal or Sgt. Edness. On July 28, 2015, a FOIL request was sent to the New York City Comptroller's Office and the status of a Notice of Claim for § 87(2)(b) is pending. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Civilian and Officer Histories

- This is § 87(2)(b)'s first CCRB complaint (See Board Review 2).
- PO Dyal has been a member of the service for 12 years and there are no substantiated CCRB allegations against him. § 87(2)(g)
- Sgt. Edness has been a member of the service for 15 years and there are no substantiated CCRB allegations against her.

Findings and Recommendations

Explanation of Subject Officer Identification

PO Dyal and Sgt. Edness acknowledged interacting with § 87(2)(b)

Recommendations

Allegation A- Discourtesy: At the Jay Street- MetroTech A/C line subway station in Brooklyn, PO Jaswant Dyal spoke discourteously to § 87(2)(b)

Allegation B- Offensive Language: At the Jay Street- MetroTech A/C line subway station in Brooklyn, PO Jaswant Dyal made remarks to § 87(2)(b) based upon race.

Allegation C- Offensive Language: At the Jay Street- MetroTech A/C line subway station in Brooklyn, PO Jaswant Dyal made remarks to § 87(2)(b) based upon the sex of § 87(2)(b)

It is not in dispute that § 87(2)(b) entered the Jay Street- MetroTech subway station through an emergency gate. § 87(2)(b) who was heading home, stated that she initially swiped her Metro Card at the turnstile, but she did not immediately walk through it because she wanted to place her wallet inside her backpack. As she was securing her wallet, § 87(2)(b)'s Metro Card swipe timed out and § 87(2)(b) was no longer able to walk through the turnstile. § 87(2)(b) and an unidentified female, whose Metro Card swipe had also timed out, decided to wait for someone leaving the station to open the emergency gate. § 87(2)(b) believed that if she was stopped by the police, she could just provide her Metro Card to prove that she had swiped it at the turnstiles. Someone eventually opened the emergency gate and § 87(2)(b) and the unidentified female proceeded to enter the station through the gate. § 87(2)(b) stated that as she was descending the stairwell to the Manhattan-bound platform, PO Dyal approached her and said something unintelligible to her. § 87(2)(b) was not sure whether PO Dyal was speaking to her or whether PO Dyal was a police officer. PO Dyal was dressed in plainclothes. § 87(2)(b) continued walking down the stairwell and PO Dyal said, "Where the fuck you going?" to § 87(2)(b). § 87(2)(b) pulled her Metro Card out to present it to PO Dyal. PO Dyal then called § 87(2)(b) either a "nigger bitch" or a "bitch nigger." § 87(2)(b) stated that she did not recall the exact order that PO Dyal phrased these epithets; PO Dyal did not use these words in a sentence. PO Dyal asked § 87(2)(b) to provide her ID, but § 87(2)(b) refused to provide it because she wanted a supervisor on the scene. PO Deoliveira, who had stopped and released the unidentified female who walked through the gate, walked over to § 87(2)(b) and asked her to cooperate with the officers. § 87(2)(b) eventually provided her ID to PO Dyal after he asked for it several times. PO Dyal checked § 87(2)(b) for any open warrants before issuing her a summons for § 87(2)(b). PO Dyal never requested a supervisor to arrive at the scene, but he told § 87(2)(b) that if she wanted to make a complaint, she could go to the Transit District 30 stationhouse at the Hoyt-Schermerhorn subway station, which was one station away. § 87(2)(b) boarded a Queens-bound train and went to the Transit District 30 stationhouse (See Board Review 3).

A request for video footage from the station yielded videos from four different angles, all of them essentially depicting the same encounter. All of the video footage depicting the encounter is shown from outside the station, looking inside through the turnstile bars. Hence, the footage is partially obstructed by the turnstile bars. The video angle attached to Board Review 10 provides the clearest and most centered footage of § 87(2)(b)'s initial attempt to enter the station through the turnstiles before entering through the emergency gate. The footage confirmed that § 87(2)(b) initially swiped her Metro Card at the turnstiles at 8:30 p.m., but she did not immediately walk through. § 87(2)(b) reached down towards her backpack and her Metro Card swipe timed out. § 87(2)(b) is shown in the video as a black female with her hair tied in a bun, wearing a dark top and dark pants. § 87(2)(b) is shown carrying an umbrella in her hand and a black backpack on her back. At 8:32 p.m., § 87(2)(b)

§ 87(2)(b) entered the station through the emergency gate; the footage does not visually capture § 87(2)(b) walking through the gate, but as stated in her CCRB testimony, § 87(2)(b) acknowledged entering the station through the gate. § 87(2)(b) then walks down the stairwell to the train platform before PO Dyal approached her and asked her to come back up to the mezzanine level. The footage, which does not have audio, shows § 87(2)(b) speaking with PO Dyal and PO Deoliveira for several minutes before she receives a summons and is released at 8:46 p.m. The footage does not depict § 87(2)(b) making any aggressive movements or gestures during the incident and she appears to be calm. PO Dyal also appears to be calm throughout the encounter. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

PO Dyal, who was assigned to Anti-crime, stated that he was standing inside the station on the mezzanine level when he observed § 87(2)(b) and another female enter the station through the emergency gate, which is a violation of transit rules and regulations and considered theft of services. PO Dyal did not see § 87(2)(b) swipe her Metro Card at the turnstiles prior to entering through the gate. PO Deoliveira stopped the unidentified female while PO Dyal proceeded to stop § 87(2)(b). As § 87(2)(b) was walking down the stairwell to the platform, PO Dyal identified himself as a police officer and asked § 87(2)(b) to return to the mezzanine level. PO Dyal denied saying, “Where the fuck you going?” to § 87(2)(b). PO Dyal did not call § 87(2)(b) either a “bitch nigger” or a “nigger bitch” and he did not use any profanity, racial slurs, or offensive language towards § 87(2)(b). When § 87(2)(b) returned to the mezzanine level, PO Dyal asked her several times for her ID, but § 87(2)(b) only offered to provide her Metro Card. PO Dyal stated to § 87(2)(b) that he did not need her Metro Card, just her ID. § 87(2)(b) was being sarcastic towards PO Dyal and she was requesting a captain on scene. PO Dyal replied to § 87(2)(b) that he was not required to request a supervisor for summons disputes. § 87(2)(b) eventually provided her ID to PO Dyal after he asked for it several times. PO Dyal issued a summons to § 87(2)(b) for § 87(2)(b). PO Dyal informed § 87(2)(b) that if she wanted to speak with someone to make a complaint, she could go to the Transit District 30 stationhouse. PO Dyal later learned that PO Deoliveira did not issue a summons to the unidentified female who walked through the gate with § 87(2)(b). PO Dyal had no interaction with this female and he did not obtain her information (See Board Review 5).

PO Deoliveira stated that he was standing on the mezzanine level with PO Dyal when he observed § 87(2)(b) and another female enter the train station through the emergency gate. PO Deoliveira proceeded to stop the unidentified female while PO Dyal stopped § 87(2)(b). PO Deoliveira did not hear what PO Dyal said to get § 87(2)(b) to stop. The unidentified female explained to PO Deoliveira that she was not from New York City and PO Deoliveira used his discretion to let the female go without a summons. PO Deoliveira then walked over to PO Dyal and § 87(2)(b). PO Deoliveira stated that PO Dyal did not say, “Where the fuck you going?” to § 87(2)(b). PO Dyal did not use any profanity towards § 87(2)(b) during the incident. PO Dyal did not call § 87(2)(b) either a “bitch nigger” or a “nigger bitch.” § 87(2)(b) was refusing to provide her ID to PO Dyal and PO Deoliveira explained to her that she was only stopped because she walked through the emergency gate. PO Deoliveira asked § 87(2)(b) who was agitated and speaking loudly,

to calm down and provide her ID. § 87(2)(b) eventually provided her ID to PO Dyal, who issued her a summons for fare evasion (See Board Review 6).

§ 87(2)(g)

[REDACTED]

It is therefore recommended that **Allegations A, B, and C** be closed as **Unsubstantiated**.

Allegation D- Abuse of Authority: At the Transit District 30 stationhouse, Sgt. Rasheda Edness did not process § 87(2)(b)'s complaint regarding PO Jaswant Dyal.

§ 87(2)(b) stated that after she received a summons from PO Dyal, she went to the Transit District 30 stationhouse to file a complaint. § 87(2)(b) went to the front desk, spoke with an officer, and requested to speak with a sergeant or captain. § 87(2)(b) did not provide details about her interaction with PO Dyal to this officer. A second officer came out and told § 87(2)(b) that he was waiting for another officer to relieve him. Sgt. Edness, the desk officer, finally appeared and § 87(2)(b) told Sgt. Edness that she wanted to file a complaint against PO Dyal. § 87(2)(b) stated that she did not speak much about the incident itself and did not provide many details regarding the incident. Sgt. Edness told § 87(2)(b) that there was nothing she could do and told § 87(2)(b) to call the CCRB. § 87(2)(b) left the stationhouse and filed a CCRB complaint on her own (See Board Review 3).

Sgt. Edness stated that § 87(2)(b) was complaining that she had been wrongfully issued a summons and she wanted the summons to be voided. § 87(2)(b) stated that she had paid her subway fare but she was still issued a summons. Sgt. Edness explained to § 87(2)(b) that she had no power to void § 87(2)(b)'s summons and that § 87(2)(b) would have to go to court to contest the charge. § 87(2)(b) also complained against PO Dyal, who

issued her the summons, and Sgt. Edness offered to process a CCRB complaint for § 87(2)(b). However, § 87(2)(b) refused to file a complaint at the stationhouse and she told Sgt. Edness that she could handle it on her own. Sgt. Edness stated that if § 87(2)(b) wanted to file a complaint at the stationhouse, she would have downloaded and printed a CCRB complaint form for § 87(2)(b) to fill out. Sgt. Edness would have then made an entry in the command log stating that § 87(2)(b) filed a complaint at the stationhouse. However, § 87(2)(b) refused Sgt. Edness's offer to take her complaint (See Board Review 7).

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **Unsubstantiated**.

Pod: 8

Investigator:	_____	_____	_____
	Signature	Print	Date
Pod Leader:	_____	_____	_____
	Title/Signature	Print	Date
Attorney:	_____	_____	_____
	Title/Signature	Print	Date